

Another victory

IT'S AN EXTREMELY RARE OCCASION THAT I GET TO TALK ABOUT TWO MAJOR CONSUMER-FRIENDLY REGULATIONS

BACK TO BACK. Last month it was the EU bringing in a regulation for unification of charger interfaces which is going to put an end to companies that have proprietary interfaces just because they could sell millions of dollars worth of accessories and add to the planet's massive plastic pollution problem. This month, we're seeing another green regulation being passed, this time in the U.S. of A. The Digital Fair Repair Act was passed by the New York state senate with a majority vote of 59 to 4. It's one major win for the 'Right to Repair' movement.

In the U.S., thanks to its legal system, individual states can enact laws and so can Federal Government. While the Federal Government's laws are far-reaching, the individual states can have laws that have a different take. In this case, since a major state has passed the law, companies will have to come up with new provisions to toe the line or face massive fines. Also, having a different device policy in some states and completely different policies in other states might also not be feasible. Let's say you buy an Apple iPhone and a couple of months down the line, something has gone kaput and now you have to get it repaired. Going to Apple is going to cost you an arm and a leg but shipping the device across the country to a state which has strong consumer laws might be a lot cheaper. Such states will make it mandatory to have device schematics available to third-parties along with access to spare parts. Getting a PCB repaired at one of these third-party stores costs but a fraction of what Apple charges at their official stores. In fact, you could save a lot of money even after factoring the shipping costs. Now imagine if every customer in the country starts shipping their devices across the country for cheap repairs. The third-party repair shops stand to make a lot of money and Apple stands to lose a lot of money. They can either jack-up the prices of official spare parts or become competitive. Let's hope for the latter. In recent months, many companies such as Apple, Samsung and Microsoft

have started offering spare parts for their gadgets. Valve, which recently introduced the Steam Deck tied-up with iFixit to offer parts even before the console entered the mass market. More companies should be like Valve.

Knowing Apple, they're bound to think of a new way to make money off of repairs but it would be easier for Apple to apply the same policies across the entire country. At least, I hope they do. This way, the Digital Fair Repair Act, that was passed in New York could slowly cause Apple to have a more lenient repair policy across the entire country. It also sets a precedent for other American companies to start preparing for the eventuality that more states could adopt similar legislation. Who knows, we might see other smartphone brands and even completely different industries start coming out with more open documentation. Many companies serving the agriculture industry in the U.S. are also guilty of having similarly anti-consumer stances. That could also see a massive change.

What about sensitive IP (Intellectual Property) being open for competitors to easily rip off? What stops firms in some far away lands from taking the schematics and replicating said product? To be honest, we all know that no matter how much legislation is produced to prevent IP theft, it always happens. Unless and until, countries sign treaties forcing all companies within said countries to honour patent and copyright laws, this problem of IP theft is never going to stop. Governments can utilise sanctions and other hard-hitting measures to ensure that IP belonging to major companies are honoured and safe-guarded across the world. Preventing right-to-repair legislation was never the right way to go about protecting IP and I honestly hope that other countries follow suit and enact similar laws before lobbyists make things worse for all of us. 



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